NEW YORK PENAL LAW

ARTICLE 10 - DEFINITIONS

§10.00 (OFFENSES, ETC.)

3. Violation; no more than 15 days

"CRIME" means:

4. Misdemeanor; in excess of 15 days to 1 year

5. Felony; in excess of 1 year

10. Serious Physical Injury; creates *substantial risk of death*, or **causes** *death or serious and protracted disfigurement*, *protracted impairment of health* or *protracted loss or impairment of the function of any bodily organ*

ARTICLE 15 - CULPABILITY; Including **Mistake**, **Effect of Intoxication**

§15.05 ... DEFINITIONS OF CULPABLE MENTAL STATES

1. **Intentionally;** when Δ's conscious objective is to cause such result or engage in such conduct
2. **Knowingly;** when Δ is aware that his conduct is of such nature or that such circumstance exists
3. **Recklessly;** when Δ is aware of and consciously disregards a substantial and unjustifiable risk that such result will occur or that such circumstance exists
4. **Criminal Negligence;** when Δ fails to perceive s substantial and unjustifiable risk that such result will occur or that such circumstance exists

§15.20 MISTAKE

1. ... not relieved for **MISTAKE OF FACT unless**
   a) **negatives culpable mental state** required
   b) statute expressly provides that such factual mistake constitutes a defense or exemption
   c) supports defense of **justification under Article 35**

2. ... not relieved for **MISTAKE OF LAW** (belief act does not constitute an offense) **unless founded upon official statement** contained in
   a) statute or other enactment
   b) administrative order or grant of permission
   c) judicial decision of state or federal court
   d) interpretation officially made or issued by public servant, agency or body legally charged responsibility or privilege of administering, enforcing, or interpreting statute or law

§15.25 EFFECT OF INTOXICATION ...

- not a defense as such; **may be offered to negative element of crime**

ARTICLE 20 - ACCESSORIAL CONDUCT

§20.00 **CRIMINAL LIABILITY FOR CONDUCT OF ANOTHER**

- when acting w/required mens rea, Δ solicits, requests, commands, importunes or aids person to engage in conduct

§20.05 ... NO DEFENSE THAT ...

1. ... **other person not guilty** b/c of criminal irresponsibility, legal exemption, or other factors precluding required mens rea
2. ... **other person has not been prosecuted for or convicted**, or has been acquitted thereof, or has legal immunity

§20.10 EXEMPTION

- when Δ's conduct, though causing or aiding commission, **is of a kind that is necessarily incidental thereto**; *if such conduct is a **related but separate offense, Δ is liable for that offense only** and not for that of other person*

§20.15 CONVICTIONS FOR **DIFFERENT DEGREES OF OFFENSE**

- **each person is guilty of such degree as is compatible with his own culpable mental state and own accountability ...**

ARTICLE 35 - JUSTIFICATION; Including **Necessity**, **Self Defense**, **Arrest**

§35.05 GENERALLY ... **NECESSITY**

2. ... **necessary as emergency measure to avoid an imminent public or private injury which ...**
   - in situation occasioned or developed **through no fault of Δ**
   - is of **such gravity**, that according to ordinary standards, **desirability and urgency of avoiding such injury clearly outweigh desirability of avoiding injury statute seeks to prevent**

§35.15 DEFENSE OF SELF, 3RD PERSON

1. ... reasonable physical force to defend ... what he believes to be use or imminent use of unlawful physical force **unless:**
   a) other's conduct provoked by Δ with intent to cause physical injury to 3rd person
   b) **Δ was initial aggressor *except* ...**
      - ***Withdrawal*;** justifiable if she has withdrawn, effectively communicated this, **but other persists** ...
   c) physical force is product of a "combat" agreement

2. **DEADLY FORCE;** may not use **unless:**
   a) reasonably believes other is using or about to use deadly physical force (death or serious physical injury) ***except***:
      - ***RETREAT*;** if Δ **knows** he can with complete safety as to himself and 3rd persons ***except NO DUTY if***:
        i) in own dwelling **and** not initial aggressor
        ii) police/peace officer, person assisting at office request
   b) **Kidnapping, Forcible Rape /Sodomy, or Robbery**
   c) **Burglary;** see §35.20

§35.20 DEFENSE OF PROPERTY
1. ... reasonable physical force to prevent or terminate crime/attempt involving **damage to premises**
   - **DEADLY FORCE;** may use if believes necessary to prevent or terminate crime/attempt of **ARSON**
2. ... reasonable physical force to prevent or terminate crime/attempt of **criminal trespass**
3. **BURGLARY AND DEADLY FORCE;** may use if believes necessary to prevent or terminate crime/attempt

§35.25 LARCENY OR CRIMINAL MISCHIEF; USE OF REASONABLE PHYSICAL FORCE

§35.27 RESIST OF ARREST; USE OF PHYSICAL FORCE **PROHIBITED**
- ... whether authorized or unauthorized ... when it would reasonably appear other is police/peace officer ...

§35.30 ARREST; PREVENTING ESCAPE of Person Reasonably Believed to Have Committed Offense
1. ... **police/peace officer** may use physical force to extent he believes necessary **to arrest, prevent escape, or defend himself or 3rd person from imminent use of physical force**
   - **DEADLY FORCE;** only when he reasonable believes that
     a) offense committed was:
        i) **felony**; attempt to commit felony *involving use, attempted use, or threatened imminent use of physical force*
        ii) **Kidnapping, Arson, Escape in 1st, Burglary in 1st;** attempts of such crimes
     b) **felony**; attempted felony **and** *in course of resisting arrest or attempting escape* **person armed w/deadly weapon**
     c) regardless of offense, **use is necessary to defend himself or 3rd person from imminent use of deadly force**

2. **Re: police/peace officer**... not justification for recklessness amounting to offense against or w/respect to innocent persons whom he is not seeking to arrest or retain in custody

4. ... **private person** may use physical force to extent he reasonably believes necessary **to arrest or prevent escape of** person **who** ... **<u>has in fact committed offense</u>**
   - **DEADLY FORCE;** when he believes such necessary to
     a) defend himself or 3rd person from use or imminent use of deadly force
     b) effect **arrest** for **Murder, Manslaughter in 1st, Robbery, Forcible Rape/Sodomy** *and* **in immediate flight**

ARTICLE 40 - OTHER DEFENSES W/O CULPABILITY; Including **Duress**, **Entrapment**, **Renunciation**, **Mental Disease**

§40.00 DURESS
1. ... Δ coerced to do so by use or threatened imminent use of physical force ..., **which a person of reasonable firmness in his situation would have been unable to resist**
2. **not available** *when Δ intentionally or recklessly* ***places himself*** *in situation* ***where probable he will be subject to duress***

§40.05 ENTRAPMENT
... engaged in conduct because **actively** induced or encouraged to do so:
- by public servant, or person acting in cooperation with, seeking to obtain evidence against Δ; and
- when methods used ... were such as to create substantial risk that person otherwise not disposed would commit offense

§40.10 RENUNCIATION; "Voluntary and Complete"
NOTE 5. Renunciation **not "voluntary and complete"** if motivated in whole or n part by
   a) **belief** that circumstances exist which **increase probability of detection or apprehension** ... or **render more difficult** the accomplishment of criminal purpose
   b) decision to **postpone** crime **or transfer target**
1. RE: ACCESSORIAL CONDUCT (§20.00)
   - withdrew prior to commission **and** made **substantial effort to prevent**
2. RE: CRIMINAL FACILITATION (§115.00)

- made substantial effort to prevent

3. RE: ATTEMPT (§110.00)
   ... Δ **avoided/prevented commission** by ...
   - abandoning his criminal effort, ***or if this is not enough***
   - taking affirmative steps
4. RE: CONSPIRACY (§105.00)
   - prevented commission

§40.15 "M'NAGHTEN;" MENTAL DISEASE OR DEFECT
... when/at the time Δ engaged in conduct, **he lacked substantial capacity to *know or appreciate* <u>either</u>:**
1. nature and consequences of such conduct
2. that such conduct was wrong

ARTICLE 100 - CRIMINAL SOLICITATION
... with intent that another engage in conduct constituting [ ], Δ solicits, requests, commands, importunes or otherwise attempts to cause

§100.00 ... IN THE 5th **(Violation)**
- a crime

§100.05 ... IN THE 4th **(Class A Misdemeanor)**
1. a felony
2. a crime *when Δ over 18 and other under 16*

§100.08 ... IN THE 3rd **(Class E Felony)**
- a felony *when Δ over 18 and other under 16*

§100.10 ... IN THE 2nd **(Class D Felony)**
- a Class A Felony

§100.13 ... IN THE 1st **(Class C Felony)**
- a Class A Felony *when Δ over 18 and other under 16*

§100.15 NO DEFENSE ...
•**other could not be guilty** b/c of criminal irresponsibility, legal exemption, or other factors precluding required mens rea

§100.20 EXEMPTION; RE: DEFENSE
- when Δ's solicitation **is of a kind that is necessarily incidental thereto**;
  *if such conduct is a **related but separate offense, Δ is guilty of that offense only** and not of criminal solicitation*

ARTICLE 105 - CONSPIRACY
… Δ agrees with one or more persons to engage in or cause performance of [ ]

§105.00 IN THE 6th **(Class B Misdemeanor)**
- a crime

§105.05 IN THE 5th **(Class A Misdemeanor)**
1. a felony
2. a crime *when Δ over 18 and one other under 16*

§105.10 IN THE 4th **(Class E Felony)**
1. a Class B or Class C Felony
2. a felony *when Δ over 18 and one other under 16*

§105.13 IN THE 3rd **(Class D Felony)**
- a Class B or Class C Felony *when Δ over 18 and one other under 16*

§105.15 IN THE 2nd **(Class B Felony)**
- a Class A Felony

§105.17 IN THE 1st **(Class A-I Felony)**
- a Class A Felony *when Δ over 18 and one other under 16*

§105.20 NECESSITY OF OVERT ACT
- … alleged and proved to have been committed by one conspirator in furtherance of conspiracy

§105.25 JURISDICTION AND VENUE
1. … in the county in which he entered conspiracy **or** any county in which an overt act was committed in furtherance of ...

NOTE: 2 and 3 address interstate conspiracies

§105.30 NO DEFENSE ...
•**one co-conspirator could not be guilty of conspiracy or object crime** b/c of criminal irresponsibility, legal exemption, or other factors precluding required mens rea

ARTICLE 110 - ATTEMPT

§110.00 … DEFINITION
- when, with intent to commit a crime, Δ engages in conduct which tends to effect commission of such crime

§110.05 *CRIME ATTEMPTED*; **PUNISHMENT**
1. ***specific Class A-I Felony*****;** then **Class A-I Felony**
   - *Murder in 1st*
   - *Criminal Possession of Controlled Substance in 1st*
   - *Criminal Sale of Controlled Substance in 1st*
2. ***Class A-II Felony;*** then **Class A-II Felony**
3. ***Class A-I Felony*** *except as provided in subdivision (1)***;** then **Class B Felony**
4. ***Class B Felony*****;** then **Class C Felony**
5. ***Class C Felony*****;** then **Class D Felony**
6. ***Class D Felony*****;** then **Class E Felony**
7. ***Class E Felony*****;** then **Class A Misdemeanor**
8. ***a Misdemeanor*****;** then **Class B Misdemeanor**

§110.10 NO DEFENSE …
- attempted crime was, **under attendant circumstances, factually or legally impossible of commission,** *if such crime could have been committed had attendant circumstances been as such person believed them to be*

ARTICLE 115 - CRIMINAL FACILITATION

… Δ believing it probable he is rendering aid … *provides means or opportunity for commission* … **which in fact aids other to commit [ ]**

§115.00 IN THE 4th **(Class A Misdemeanor)**
1. felony
2. crime *when Δ over 18 and other under 16*

§115.01 IN THE 3rd **(Class E Felony)**
- felony *when Δ over 18 and other under 16*

§115.05 IN THE 2nd **(Class C Felony)**
- a Class A Felony

§115.08 IN THE 1st **(Class B Felony)**
- a Class A Felony *when Δ over 18 and other under 16*

§115.10 NO DEFENSE …
1. ... **other person not guilty** b/c of criminal irresponsibility, legal exemption, or other factors precluding required mens rea
2. ... **other person has not been prosecuted for or convicted**, or has been acquitted thereof, or has legal immunity
3. **Δ not guilty of felony facilitated because he did not act with required mens rea** for commission thereof

§115.15 CORROBORATION
- Δ shall not be convicted upon testimony of person who committed allegedly facilitated felony **unless** corroborating evidence

ARTICLE 120 - ASSAULT; RECKLESS ENDANGERMENT; AGGRAVATED ASSAULT OF POLICE

§120.00 IN THE 3rd **(Class A Misdemeanor)**
1. w/**intent** to cause **physical injury** to another person, Δ causes such injury to person or 3rd person
2. **recklessly** causes **physical injury** to another person
3. w/**criminal negligence**, Δ causes **physical injury** to another by means of **deadly weapon or dangerous instrument**

§120.05 IN THE 2nd **(Class D Felony)**
1. w/**intent** to cause **serious physical injury** to another person, Δ causes such injury to person or 3rd person
2. w/**intent** to cause **physical injury** to another, Δ causes such injury to person or 3rd person by means of **deadly weapon or dangerous instrument**
4. **recklessly** causes **serious physical injury** to another by means of **deadly weapon or dangerous instrument**

RE: INTERFERENCE W/POLICE ...
3. w/**intent** to **prevent police/peace officer, fireman or paramedic** from performing lawful duty, Δ causes **physical injury**

RE: DRUG INDUCED CONDITIONS
5. w/unlawful purpose, causes **stupor, unconsciousness** or other **impairment or injury** to another ***by administering to him without consent a drug, substance or preparation capable of producing same***

RE: IN COURSE OF FELONY
6. **in course of** and in furtherance of **felony**/attempted felony **or immediate flight**, Δ causes **physical injury** to another *except to another participant*

RE: IN PRISON ...

7. while **in correctional facility**, w/**intent** to cause **physical injury** to another, Δ causes such injury to person or 3rd person

§120.10 IN THE 1st **(Class C Felony)**

1. w/**intent** to cause **serious physical injury** to another person, Δ causes such injury to person or 3rd person by means of **deadly weapon or dangerous instrument**
2. w/**intent** to **disfigure** another person **seriously and permanently**, or destroy, amputate or **disable permanently a member or organ**, Δ causes such injury to person or 3rd person

RE: DEPRAVED HEART

3. under circumstances evincing **depraved indifference to human life**, Δ **recklessly engages in conduct creating grave risk of death**, and thereby causes **serious physical injury**

RE: FELONY ASSAULT

4. **in course of** and in furtherance of **felony**/attempted felony **or immediate flight**, Δ causes **serious physical injury** to another *except to another participant*

§120.11 AGGRAVATED ASSAULT UPON POLICE/PEACE OFFICER **(Class B Felony)**

- w/**intent** to cause **serious physical injury** to person *he knows or reasonably should know to be police officer* performing his official duties, Δ causes such injury by means of **deadly weapon or dangerous instrument**

§120.20 RECKLESS ENDANGERMENT IN THE 2nd **(Class A Misdemeanor)**

- **recklessly** engages in **conduct which creates substantial risk of serious physical injury**

§120.25 RECKLESS ENDANGERMENT IN THE 1st **(Class D Felony)**

- under circumstances evincing **depraved indifference to human life**, Δ **recklessly** engages in **conduct which creates a grave risk of death**

ALSO: VEHICULAR ASSAULT
PROMOTING SUICIDE ATTEMPT
HAZING

ARTICLE 125 - HOMICIDE; MANSLAUGHTER

§125.10 CRIMINALLY NEGLIGENT HOMICIDE **(Class E Felony)**

- w/**criminal negligence**, Δ causes death of another

§125.15 MANSLAUGHTER IN 2nd **(Class C Felony)**

1. **recklessly** causes death of another
2. Re: ABORTION

RE: SUICIDE

3. **intentionally** causes or aids another to commit **suicide**

§125.20 MANSLAUGHTER IN 1st **(Class B Felony)**

1. w/**intent** to cause **serious physical injury** to another, he causes death of person or 3rd person
3. Re: ABORTION

RE: PROVOCATION TO MURDER; EMOTIONAL DISTURBANCE ...

2. w/**intent** to cause death of …, Δ causes death of person or 3rd person **under influence of extreme emotional disturbance**

§125.25 MURDER IN 2nd **(Class A-I Felony)**

1. w/**intent** to cause death of …, Δ causes death of person or 3rd person ***except it is affirmative defense that*:**
   a) Δ acted **under influence of extreme emotional disturbance** for which there was *reasonable explanation or excuse*, *reasonableness from viewpoint of person* ***in Δ's situation*** *under circumstances* ***as Δ believed them to be***
   b) Δ's caused or aided another to commit **suicide**, *without duress or deception*

RE: DEPRAVED HEART

2. **under circumstances evincing depraved indifference to human life,** Δ **recklessly** engages in conduct which creates a **grave risk of death** to another, **and causes death**

RE: FELONY MURDER

3. **in course of** and in furtherance of **[ ]**/attempted [ ] **or immediate flight**, Δ causes **death** ***except to another participant***

   Crimes incl:
   - Robbery
   - Burglary
   - Kidnapping
   - Arson
   - Rape/Sodomy in the 1st
   - Sexual Abuse in the 1st
   - Aggravated Sexual Abuse

   Except, ***when not acting alone****, it is affirmative defense that*:

   a) Δ **did not commit the homicide**, or in anyway solicit, request, command, importune, cause or aid commission thereof
   b) Δ **was not armed with deadly weapon or instrument** and of sort not ordinarily carried in public by law-abiding
   c) Δ had **no reasonable ground to believe any other participant was so armed**
   d) Δ had **no reasonable ground to believe any other intended conduct likely to result in death or serious injury**

§125.27 MURDER IN 1st **(Class A-I Felony)**

1. w/**intent** to cause death of another, causes death of another **and:**
   a) *EITHER*
      i) victim was **police officer** performing his official duties, *and Δ knew or reasonably should have known*
      ii) victim was **employee of state correctional institution or local correctional facility** … etc.
      iii) Re: Δ Prisoner of Certain Sentences, etc.
   b) Δ **more than 18 at time of commission**

2. *It is affirmative defense that:*
   a) Δ acted **under influence of extreme emotional disturbance** for which there was *reasonable explanation or excuse, reasonableness from viewpoint of person* ***in Δ's situation*** *under circumstances* ***as Δ believed them to be***
   b) Δ's caused or aided another to commit **suicide**, *without duress or deception*

ALSO: VEHICULAR MANSLAUGHTER
ABORTION

ARTICLE 30 - SEX OFFENSES

§130.00 DEFINITIONS

3. **Sexual Contact;** any touching of intimate parts of person not married to actor for gratifying either's sexual desire. *Includes touching* ***of actor by victim*** *as well as* ***of victim by actor****, directly or through clothing*.
4. **Female;** any female person who is not married to actor.
   "Not Married" incl: b) married **but living apart** ***pursuant to a valid and effective***:
      i) court order
      ii) decree or judgment of separation
      iii) written agreement of separation which specifically states "no sex" w/o consent
6. **Mentally Incapacitated;** temporarily incapable of appraising or controlling conduct b/c of
   - influence of **narcotic or intoxicating substance** administered to her ***without her consent***
   - any other act committed upon her without her consent
7. **Physical helpless; unconscious** or for any other reason physically **unable to communicate unwillingness to act**
8. **Forcible Compulsion;** to compel either by
   a) use of **physical force**
   b) **threat**, express or implied, which places person **in fear of immediate death or physical injury** to self or 3rd person **or in fear that s/he or 3rd person will immediately be kidnapped**

§130.05 LACK OF CONSENT

1. ... element in each *except consensual sodomy*
2. Lack of consent results from:
   a) **Forcible Compulsion**
   b) **Incapacity to Consent**
   c) *where offense charged is* ***sexual abuse***, any circumstances in addition to (a) and (b) in which victim does not expressly or impliedly acquiesce

3. … **incapable of consent** when
   a) **less than 17**
   b) mentally defective
   c) mentally incapacitated
   d) physically helpless

§130.10 DEFENSE
- when **no consent solely b/c of incapacity to consent**, *affirmative defense that* ***Δ at the time did not know of facts or conditions responsible for such incapacity to consent***

§130.20 SEXUAL MISCONDUCT (Class A Misdemeanor)
1. **male** engages in intercourse w/**female** ***without consent***
2. **male** engages in deviant intercourse w/another *without consent*
3. **male** engages in sexual conduct w/animal (moooo! moooo!) or w/**dead body**

NOTE: RAPE ONLY OF PERSONS NOT MARRIED TO ...

§130.25 RAPE IN 3rd **(Class E Felony)**
1. **he *or* she** engages in intercourse w/another **incapable of consent *for reason other than <17***
2. **he *or* she is 21 or more** and engages in intercourse w/**person <17**

NOTE: §130.40 is comparable SODOMY IN 3rd

§130.30 RAPE IN 2nd **(Class D Felony)**
- **he *or* she is 18 or more** and engages in intercourse w/**person <14**

NOTE: §130.45 is comparable SODOMY IN 2nd

§130.35 RAPE IN 1st **(Class B Felony)**
... **male** engages in intercourse w/**female**:
1. by **forcible compulsion**; or
2. who is **incapable of consent *by reason of physical helplessness***
3. who is **< 11**

NOTE: §130.50 is comparable SODOMY IN 1st

§130.38 CONSENSUAL SODOMY **(Class B Misdemeanor)**

ALSO: SEXUAL ABUSE which is SEXUAL CONTACT W/O CONSENT
AGGRAVATED SEXUAL ABUSE which is INSERTION OF *FINGER OR OBJECT* W/O CONSENT

ARTICLE 135 - KIDNAPPING, UNLAWFUL IMPRISONMENT, **COERCION** AND RELATED OFFENSES

§135.60 COERCION IN THE 2nd **(Class A Misdemeanor)**
- compels or induces person to **engage in conduct person has legal right to abstain from *or*** to **abstain from conduct person has legal right to engage in *by means of instilling fear that, if not obeyed,*** the actor or another will:
  1) cause **physical injury** to a person
  2) cause **damage to property**
  3) engage in other crime
  4) accuse some person of crime
  5) expose secret or asserted fact tending to subject another to hatred, contempt, or ridicule
  6) cause a strike or boycott of another person's business *with exceptions*
  7) **testify** or provide info or **withhold testimony** or information w/respect to another's legal claim or defense
  8) abuse his position as public servant ...
  9) etc. …

§135.65 COERCION IN THE 1st **(Class D Felony)**
- commits **Coercion in the 2nd *and***
  1) commits such crime by instilling fear that he will cause **physical injury** to a person or **damage to property**; OR
  2) he **thereby compels or induces victim** to:
     a) commit or attempt a **felony**
     b) cause or attempt **physical injury to another**
     c) **violate his duty as public servant**

ARTICLE 140 - BURGLARY; TRESPASS

§140.10 TRESPASS IN THE 3rd **(Class B Misdemeanor)**
- when Δ knowingly enters or remains unlawfully in ***building*** *or upon real property*:
  a) which is **fenced or otherwise enclosed** in manner designed to exclude intruders

§140.15 TRESPASS IN THE 2nd **(Class A Misdemeanor)**
- when Δ knowingly enters or remains unlawfully in a *dwelling, i.e.* ***home***

§140.17 TRESPASS IN THE 1st **(Class D Felony)**
- when Δ knowingly enters or remains unlawfully in a *dwelling, i.e.* ***home*** **and**:
  1) possesses, or knows another participant possesses, a **deadly weapon**

§140.20 BURGLARY IN THE 3rd **(Class D Felony)**
- when Δ knowingly enters or remains unlawfully in a ***building*** w/**intent to commit a crime therein**

§140.25 BURGLARY IN THE 2nd **(Class C Felony)**
- when Δ knowingly enters or remains unlawfully in a ***building*** w/**intent to commit a crime therein** ***and when***:
  1) in **entry** *or* **while in building** *or* **immediate flight**, Δ or another participant:
     a) armed w/**deadly weapon**
     b) causes **physical injury** to anyone not a participant
     c) **uses or threatens immediate use of dangerous instrument**
     d) **displays** what appears to be some kind of **gun or firearm**
  2) building is a *dwelling, i.e.* ***home***

§140.30 BURGLARY IN THE 1st **(Class B Felony)**
- when Δ knowingly enters or remains unlawfully in a ***dwelling or home*** w/**intent to commit a crime therein** ***and*** *when effecting* ***entry, while in dwelling****, or in* ***immediate flight***, Δ or another participant:
  1) armed w/**deadly weapon**
  2) causes **physical injury** to another not a participant
  3) **uses or threatens immediate use of dangerous instrument**
  4) **displays** what appears to be some kind of **gun or firearm** ***except it is affirmative defense that*****:**
     - such gun **was not loaded**

§140.35 POSSESSION OF BURGLAR'S TOOLS **(Class A Misdemeanor)**

ARTICLE 155 - LARCENY

ARTICLE 160 - ROBBERY

§160.00 DEFINITION
- forcible stealing; Δ **uses or threatens immediate use of physical force upon another** for purpose of:
  1) preventing or overcoming resistance to taking, or to the retention thereof after taking
  2) compelling owner or another to deliver property *or* aid commission of larceny

§160.05 ROBBERY IN THE 3rd **(Class D Felony)**
- when Δ forcibly steals

§160.10 ROBBERY IN THE 2nd **(Class C Felony)**
- when Δ forcibly steals **and**:
  1) **aided by another** actually present
  2) **in course of commission** or of **immediate flight**, Δ or another participant
     a) causes **physical injury** to another not a participant
     b) **displays** what appears to be some kind of **gun or firearm**

§160.15 ROBBERY IN THE 1st **(Class B Felony)**
- when Δ forcibly steals **and** when **in course of commission** or of **immediate flight**, Δ or another participant
  1) armed w/**deadly weapon**
  2) causes **physical injury** to another not a participant
  3) **uses or threatens immediate use of dangerous instrument**
  4) **displays** what appears to be some kind of **gun or firearm** ***except it is affirmative defense that*****:**

- such gun **was not loaded**

ARTICLE 220 - CONTROLLED SUBSTANCES OFFENSES

ARTICLE 221 - MARIJUANA

NY PUNISHMENT; SENTENCES

	MINIMUM	MAXIMUM
MURDER in 1st	15 - 25	Life or Death
FELONIES		
A-I	15 - 25	Life
A-II	3 - 8 yrs, 4 months	Life
B	6 - 1/3 of max	25
C	4.5 - 1/3 of max	15
D		7
E		4
MISDEMEANORS		
A		1
B		3 months